

Supplementary Provisions

3. Each appointed member of the Board shall hold office for four years from the date of his appointment, and shall be eligible for reappointment on the expiry of that period.

4. If the place of an appointed member of the Board becomes vacant before the expiration of his term of office, whether by death, resignation or otherwise, the vacancy shall be filled by appointment, by the body or person who appointed the member whose place so became vacant, of a person possessing the like qualification as that member.

5. The Secretary of State shall appoint, either from among the members or otherwise, a person to be chairman of the Board, and the Board shall appoint one of their members to be vice-chairman.

6. The Board shall have power to appoint committees consisting of members of the Board.

7. The Board shall have power to make rules regulating their procedure including the quorum of the Board and of any committee appointed by them.

8. The proceedings of the Board shall not be invalidated by any vacancy in the membership thereof or by any defect in the appointment of a member.

9. The Board shall be a body corporate with a common seal.

CHAPTER 15

An Act to extend the period during which loans and advances may be made under the Cinematograph Film Production (Special Loans) Acts, 1949 to 1952; to authorise the National Film Finance Corporation to enter into special arrangements with respect to certain loans; and for purposes connected therewith.
[9th March, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In the following provisions of the Cinematograph Film Production (Special Loans) Act, 1949 (in this Act referred to as "the principal Act"), as amended by the Cinematograph Film Production (Special Loans) Act, 1950, that is to say—

(a) paragraph (b) of subsection (1) of section one (which authorises the making of loans by the National Film Finance Corporation during the five years beginning with the passing of the principal Act);

Extension of
period for
making loans.
12, 13 & 14
Geo. 6. c. 20.
14 Geo. 6. c. 18.

- (b) subsection (1) of section four (which authorises the Board of Trade, with the consent of the Treasury, to make advances to the Corporation within the said five years, so, however, that the aggregate amount of the principal outstanding in respect of any such advances shall not at any time exceed six million pounds); and
- (c) sub-paragraph (1) of paragraph 8 of the Schedule (which empowers the Treasury in certain circumstances by order to dissolve the Corporation at any time after the expiration of the said five years),

for the words " five years " there shall in each case be substituted the words " eight years ".

Power to enter into arrangements with respect to certain loans.

2.—(1) If at any time the Corporation are satisfied with respect to any loan made by them which has fallen due for repayment that, except with harmful consequences to the production of films, the amount of the loan cannot be recovered in accordance with the terms thereof or by means of the remedies available, the Corporation may with the approval of the Board of Trade enter into any financial arrangements with respect to that loan which, in the judgment of the Corporation, are calculated to lead to the eventual recovery without such harmful consequences as aforesaid of the whole or part of the amount of the loan; and any such arrangements may in particular provide for the waiving by the Corporation of payment of interest or for the acceptance by the Corporation of shares or debentures in any company in or towards repayment of the amount of the loan.

(2) Where for the time being, under any such arrangements with respect to a loan, the Corporation are receiving no payment or are receiving smaller payments than they were to have received under the terms of the loan, the Board of Trade may with the approval of the Treasury postpone or remit in whole or in part any payments by the Corporation to the Board, being payments of amounts in or towards repayment of any advance made by the Board under section four of the principal Act and used for the purposes of that loan or payments of interest on any sums for the time being outstanding in respect of any such advance.

(3) The Board of Trade shall lay before each House of Parliament a statement of any payment or part of a payment in respect of any advance made to the Corporation by the Board which is postponed or remitted by the Board under the last foregoing subsection, together with particulars of any arrangements entered into by the Corporation under subsection (1) of this section with respect to the loan for the purposes of which that advance was used.

(4) In this section, the expressions " shares ", " debentures " and " company " have the same meanings as in the Companies Act, 1948.

3.—(1) This Act may be cited as the Cinematograph Film Production (Special Loans) Act, 1954, and shall be construed as one with the principal Act. Short title,
citation, etc.

(2) This Act and the Cinematograph Film Production (Special Loans) Acts, 1949 to 1952, may be cited together as the Cinematograph Film Production (Special Loans) Acts, 1949 to 1954.

CHAPTER 16

An Act to amend the Pneumoconiosis and Byssinosis Benefit Act, 1951, by applying it to diseases in respect of which compensation was payable under the Workmen's Compensation Act, 1925, and by making provision for the payment of benefit for partial disablement, and for purposes incidental thereto. [9th March, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Pneumoconiosis and Byssinosis Benefit Act, 1951 (in this Act referred to as "the 1951 Act") shall apply to any disease in respect of which compensation was payable under the Workmen's Compensation Act, 1925, by virtue of section forty-three of that Act, as well as to pneumoconiosis and byssinosis. Extension to
other diseases.
15 & 16 Geo. 6.
& 1 Eliz. 2, c. 4.
15 & 16 Geo. 5.
c. 84.

(2) A scheme under the 1951 Act shall not provide for the payment of benefit in respect of a disease to which the Act is applied by this section, unless the Minister of Pensions and National Insurance is satisfied that the disease is of such a nature that there are likely to be cases where a person suffers from it and it is due to the nature of his employment, but where it does not manifest itself till more than twelve months after he has ceased to be engaged in the employment.

(3) In paragraph (b) of subsection (1) of section two of the 1951 Act (under which a scheme cannot provide for the payment of benefit in respect of a person's disablement or death if compensation in respect of it has been paid or is payable by virtue of a scheme made or certified under the Workmen's Compensation Acts), for the words "by virtue of any scheme made or certified under the Workmen's Compensation Acts" there shall be substituted the words "under the Workmen's Compensation Acts or by virtue of a scheme made or certified thereunder".